

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

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TAIQUAN SMITH

Date of Filing:

Plaintiff,

Plaintiff designates
QUEENS County
as the place of trial

-against-

SUMMONS

THE CITY OF NEW YORK, Police Officer Lisaura
Skladel and Police Lieutenant "John" Zuber, both
Members of New York City Police Department

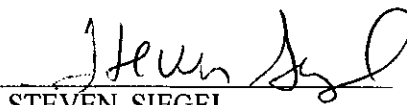
Defendants.

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The Basis of Venue is the Residence of Plaintiff
41-01 12th Street, Long Island City, NY 11101

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: January 20, 2014


STEVEN SIEGEL,
Attorney for Plaintiff
123-12 82nd Avenue
Kew Gardens, New York 11415
T: (718) 520-0413
F: (718) 544-7044
thesiegelfirm@gmail.com

Address of defendant THE CITY OF NEW YORK:

THE CITY OF NEW YORK, Office of the Comptroller, Municipal Building,
1 Centre Street, New York, N.Y. 10007-2341

Address of defendant Police Officers.

City of New York, Police Department, 81st Precinct, 30 Ralph Avenue, Brooklyn, N.Y. 11221

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No.:
TAIQUAN SMITH,

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, Police Officer Lisaura
Skladel and Police Lieutenant "John" Zuber, both
Members of New York City Police Department

Defendants.

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Plaintiff, by his attorney STEVEN SIEGEL, P.C., complaining

of the defendants, allege as follows:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF TAIQUAN SMITH**

1. That at all times herein mentioned, the Plaintiff was and still is a resident of the County of Queens, City and State of New York.
2. That at all times herein mentioned, defendant THE CITY OF NEW YORK was and is a municipal corporation, organized and existing under and by virtue of the Laws of the State of New York.
3. That at all times herein mentioned, defendants Police Officer Lisaura Skladel and Police Lieutenant "John" Zuber, were members of New York City Police Department and employees of the City of New York.
4. That the Plaintiff has complied with Section 50(e) of the General Municipal Law, in that on or about June 25, 2013, a Notice of Claim was duly served upon defendant THE CITY

OF NEW YORK by certified mail, return receipt requested; said Notice of Claim is annexed hereto and thereby made a part hereof.

5. That over thirty (30) days has elapsed since the service of the aforementioned Notice of Claim, and the defendants have failed, refused and neglected to adjust this matter.

6. That on October 7, 2013, Taiquan Smith appeared for a 50(h) hearing at the request of the City of New York.

7. That this action is being commenced within one (1) year and ninety (90) days of April 26, 2013, the date upon which the events alleged herein took place.

8. That on or about April 26, 2013, at or about 11:30 P.M., the Plaintiff was lawfully present outside premises 40-14 12th Street, Long Island City, NY.

9. That at the aforesaid time and place, the aforementioned police officers did maliciously, wantonly, willfully and intentionally assault and batter plaintiff TAIQUAN SMITH by, among other things, pushing him against a wall, striking his waist with a knee, punching him and dragging him along the ground.

10. That by reason thereof, plaintiff TAIQUAN SMITH was severely injured, sustained severe nervous shock, mental anguish and emotional upset; suffered and will continue to suffer pain, inconvenience and other effects; was and will continue to be incapacitated from pursuing his usual tasks and duties, and has become obligated for medicines, medical care, aid and attention in an effort to alleviate his pain and suffering.

11. That the aforesaid acts and resulting injuries were caused solely by acts of the defendants, without any conduct of the Plaintiff instigating such conduct by the defendant police officers.

12. That by reason of the foregoing, plaintiff TAIQUAN SMITH has been damaged in a sum of money in excess of the jurisdiction of all inferior courts of this state and within the monetary jurisdiction of this Supreme Court of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF TAIQUAN SMITH**

13. Plaintiff repeat and reallege each of the allegations set forth above, with the

same force and effect as though fully set forth herein.

14. That at the aforesaid time and place, the defendant police officers, without any warrant or authority of law, did wrongfully, unlawfully, against the Plaintiff s will and without probable cause arrested him and compelled him to accompany him to a police station, said police station being under the supervision and control of defendant THE CITY OF NEW YORK, where the Plaintiff was wrongfully, unlawfully, against his will and without probable cause charged with a violation, misdemeanor or felony, and confined him for several hours.

15. That by reason of the foregoing, the Plaintiff was wrongfully and unlawfully deprived of his liberty, and compelled him to remain closely confined with several other prisoners.

16. That upon information and belief, the acts of said defendants were willful and concerted, and done maliciously and knowingly in furtherance of some purpose, personal to himself or herself and possibly other police officers.

17. That the charges against the Plaintiff have been dismissed pursuant to court order.

18. That by reason of the foregoing, plaintiff TAIQUAN SMITH has been damaged in a sum of money in excess of the jurisdiction of all inferior courts of this state and within the monetary jurisdiction of this Supreme Court of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF TAIQUAN SMITH

19. Plaintiff repeats and realleges each of the allegations set forth herein above, inclusively, with the same force and effect as though fully set forth herein.

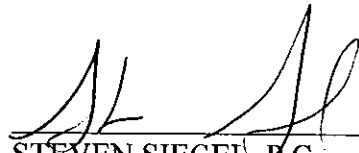
20. That defendant police officers were acting under the color of the Laws of the State of New York when he assaulted, arrested and confined the Plaintiff.

21. That the aforementioned conduct violated section 1983 of title 42 of the United States Code, the First, Fourth, Seventh and Fourteenth Amendments of the United States Constitution, and the parallel provisions of the Constitution of the State of New York.

22. That by reason of the foregoing, plaintiff TAIQUAN SMITH was deprived of the rights, privileges and immunities secured by the Constitution or Laws of the United States, including his right to be free from a wrongful and unlawful arrest, detention and imprisonment, injury to the person and malicious prosecution, all to his damage in the sum of money within the jurisdiction of this Court, inclusive of punitive damages.

WHEREFORE, the Plaintiff demand judgment against the defendants in the First Cause of Action, the Second Cause of Action and the Third Cause of Action for a sum of money within the jurisdiction of this Court, together with punitive damages and the costs and disbursements of this action.

Dated: Kew Gardens, New York
January 20, 2014



STEVEN SIEGEL, P.C.

Attorneys for Plaintiff
123-12 82nd Avenue
Kew Gardens, NY 11415
T: (718) 520-0413
F: (718) 544-7044
thesiegefirm@gmail.com

VERIFICATION

STATE OF NEW YORK: COUNTY OF QUEENS

STATE OF NEW YORK)

ss:

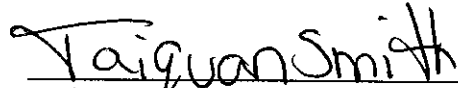
COUNTY OF QUEENS)

Taiquan Smith, residing at 41-01 12th Street, St., Long Island City, NY being duly sworn, deposes and says:

1. That I am the plaintiff in the above captioned matter and am fully familiar with the facts and circumstances of this action.

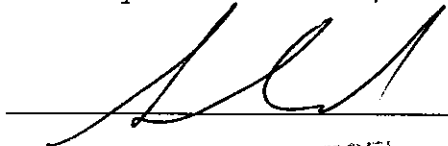
2. That I have read the foregoing complaint and know the contents thereof.

3. That the same is true of my own knowledge, except as to those matters alleged upon information and belief. As to those matters stated to be alleged upon information and belief, I believe them to be true, based upon official court papers, conversations with my attorney and others and independent investigations.



Taiquan Smith

Sworn to before me this
11 day of December, 2013



STEVEN SIEGEL
Notary Public: State of New York
No. 02810990005
Qualified in Nassau County
Expires 8/31/14

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- against -

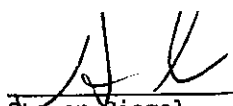
THE CITY OF NEW YORK, Police Officer Lisaura Skladel and Police Lieutenant
"John" Zuber, both members of New York City Police Department

Defendants.

SUMMONS & VERIFIED COMPLAINT

STEVEN SIEGEL, P.C.
Attorney for Plaintiff 123-
1282nd Avenue
Kew Gardens, New York 11415
T: (718) 520-0413
F: (718) 544-7044
thesiegelfirm@gmail.com

CERTIFICATION: I, STEVEN SIEGEL of STEVEN SIEGEL, P.C., am an attorney duly admitted to the practice of law in the State of New York, and hereby certify that all of the papers that I have served, filed or submitted to the Court which relate to the above captioned action are not frivolous as defined in subsection (e) of Sec. 130-1.1 of the Rules of the Chief Administrator of the Courts.
Dated: January 20, 2014



Steven Siegel
